The Forgotten Half of the Patent Clause

How Federal Regulations Doubled the Cost of American Living and Rewrote the Constitution

How a Constitutional Bargain Was Cancelled — Restoring It Frees Buyers from Surveillance, Stops Robots Replacing America's Drivers & Operators, and Returns the Joy of Operating Real Machines

A constitutional law litigation strategy and a citizen's playbook — in one book.

Roleigh Martin

Foreword by Gord Magill

Author, *End of the Road: Inside the War on Truckers*

The Claim & Remedy

Article I, Section 8, Clause 8 was written in 1787, more than two years before the first patent law. Its words — "securing for limited Times to Authors and Inventors the exclusive Right…" — are therefore a constitutional limit on securing exclusivity by any means, not merely a rule for patent statutes. A secured restriction against competition must expire. For 183 years no second federal power crossed that limit in ordinary commerce; the encroachments the Court struck down came from state law and private contract.

When a patent expires, the engineering design passes to the public — anyone may make, use, and improve it — while the maker's brand and logo stay protected. Yet since 1970, federal energy, emissions, and safety standards have raised a second, potentially permanent exclusion. No rule forbids remanufacture outright. But a faithful remake of a decades-old design must meet standards written for new designs, which it can rarely satisfy without ceasing to be that design. In practice the result is overwhelmingly a ban: the monopoly ends, and the exclusion from low-cost competition outlives it.

That barrier reaches an estimated 58 percent of expired-patent commerce. Five years after a ruling, my book projects, a household choosing remade goods wherever offered recovers roughly a third to half of what it now spends in those categories. One that buys nothing remade still recovers about fifteen percent, because the new tier must price against the remade tier beside it on the lot. The bottom forty percent gain most: they choose the remade item over the new one most often, and the recovery is the largest share of their income.

A general regulatory power cannot accomplish what a specific constitutional limit forbids. The argument rests on two prongs — the Patent Clause and the Takings Clause — and seeks neither deregulation nor weaker standards. It proposes a narrow time-shift: a remake of a fully expired design, certified by an independent engineer, meets the standards of its original platform year, while modern standards remain fully in force for new designs.

Federal law already trusts that time-shift in aviation, where the stakes are highest: a certificated design may keep earlier certification requirements rather than meet every current standard. After the last patent on its original landing gear expired in 1969, Cessna built new 172 Skyhawks for seventeen years to a certification basis written before 1965, while any competitor without Cessna's permission would have been held to newer ones. The difference is who may use it. The FAA extended the time-shift only to the certificate's holder and those it licensed. The Constitution promises the expired engineering design to everyone. The independent engineering certification is this book's proposal for reconciling the two. It honors the bargain and leaves modern standards intact for new designs.

Proposed Sales Poster (Who is Blocked)

THE FORGOTTEN HALF OF THE PATENT CLAUSE

Honor "limited Times" in the Constitution and legalize remanufacturing for the blocked 58% of commerce

"The Original US Constitution — Article I, Section 8, Clause 8"

To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries.

Buy the book that gives 19 groups of Americans a future they can afford: cars, trucks, tractors, appliances, incandescent light bulbs and heavy equipment remanufactured from proven 20+ year-old designs, priced 40–50% below new, and repairable by their owners. What we buy decides how fast that future arrives — and this one is already promised, written into the Constitution in 1787.



Every spoke is an American denied the same thing by the same wall. The Constitution's "limited Times" was written in 1787, two and a half years before the first patent law, so it binds every federal rule that touches an invention — not patent law alone. When a patent expires, the design belongs to the public. Since 1970, federal rules have required remakes to meet the newest standards instead of the original ones.

From THE FORGOTTEN HALF OF THE PATENT CLAUSE by Roleigh Martin

marti124.github.io/Patent_BkSignup/

Proposed Back Cover Art (What is Blocked)

THE FORGOTTEN HALF OF THE PATENT CLAUSE

What the Constitution said.
What the Supreme Court confirmed.
What post-1970 regulations did anyway.

"The Original US Constitution — Article I, Section 8, Clause 8"

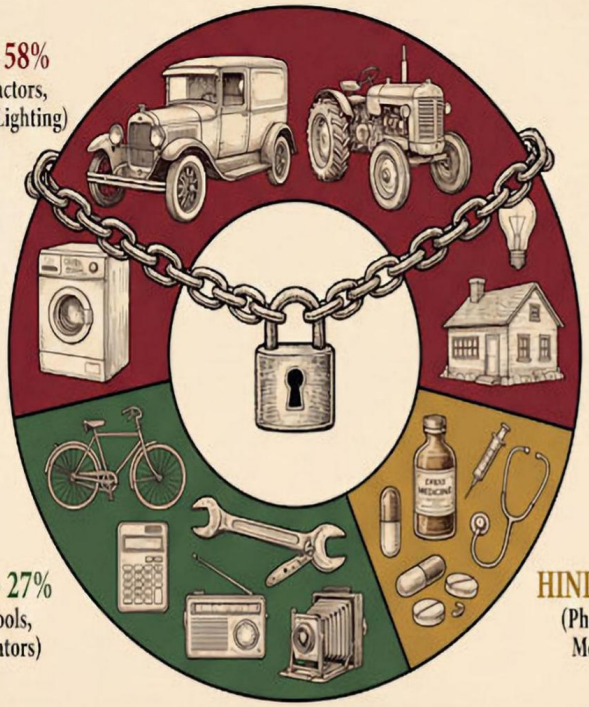
To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries.

"Any attempted reservation or continuation...after the patent expires, whatever the legal device employed, runs counter to the policy and purpose of the patent laws."
— Chief Justice Stone, *Scott Paper Co. v. Marcalus* (1945)

"When the patent expires, the patentee's prerogatives expire too, and the right to make or use the article, free from all restriction, passes to the public."
— *Kimble v. Marvel Entertainment* (2015)

YET 58% OF THE PUBLIC DOMAIN IS BLOCKED

BLOCKED — 58%
(Cars, Trucks, Tractors, HVAC, Appliances, Lighting)



FLOWING — 27%
(Electronics, Tools, Bicycles, Calculators)

HINDERED — 15%
(Pharmaceuticals & Medical Devices)

A $22 trillion household cost since 1970. $3,385 per household, every year.

The Constitution and the Court say we can reclaim it.

Proposed Remedy (Blockage Ends)

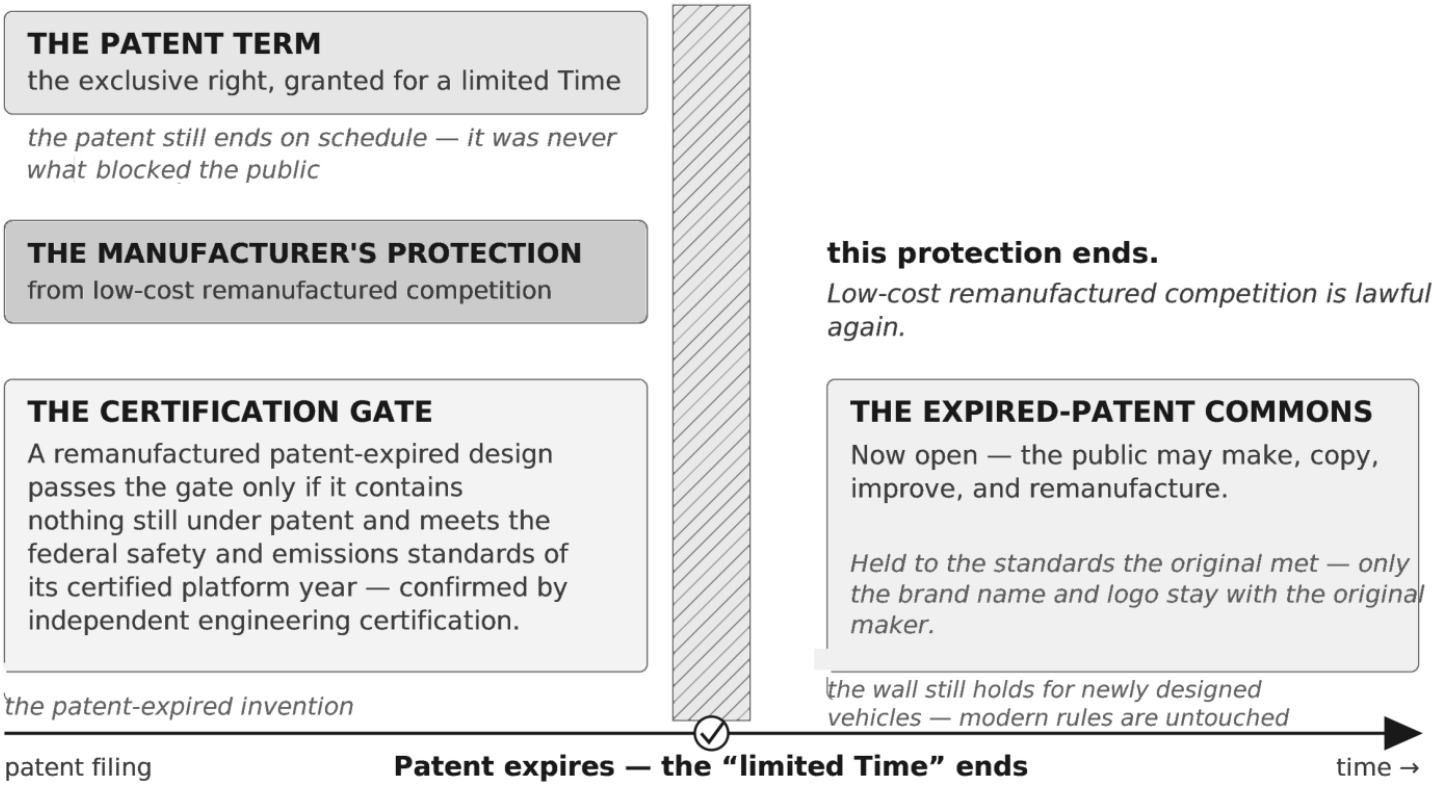
The Desired SCOTUS Ruling Time-Shifts Regulations for Remanufacturing; the Commons Opens

THE PRINCIPLE
The regulatory standards for the original invention should be the same for a patent-expired remake — equal justice (standing) under the Patent Clause. A remake can happen if it need only meet the original standards.

THE PROBLEM TODAY
Current standards have ratcheted up and make it impossible to remanufacture the expired-patent item. The remedy time-shifts the rule back to the original's standard — the public's remake need meet only what the original met.

THE REGULATORY STANDARD

A grandfather exemption, earned by independent engineering certification, time-shifts the remanufactured design to the standards in force when its original was certified.



Simplified: the patent is shown expiring in the present, with remanufacturing desired now. The standard's applicability is time-shifted to the original's certified year — the wall stands, but for the remake it speaks the standards of that year.

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could read to a publisher as competing with the book itself. If a colleague should see it, tell me and I will send them their own link.

The book is 583 pages long. Every source carries a live link and cites more than 90 Supreme Court cases surveyed and noted. Gord Magill, author of "End of the Road: Inside the War on Truckers," wrote the foreword; owner-operators are the strongest plaintiff category the work identifies among 19 identified categories. Gord Magill has discussed his book and the industry twice on The Tucker Carlson Show (also January 2024), on C-SPAN's Washington Journal, on War Room with Stephen K. Bannon Ep. #4726 and on Fox's Ingraham Angle. He writes at Autonomous Truck(er)s and hosts the podcast Voice of GO(r)D. Gord's podcast episode with me, "The Unconstitutional Highway", is the best hour on the book if hearing it suits you better than reading.

Five public addresses, if you would rather look before you answer

https://marti124.github.io/Patent_BkSignup/

The page asks readers to show a publisher there is demand for The Forgotten Half of the Patent Clause, which is finished but not yet printed. Visitors leave an email and say which formats they would buy, including bulk copies. They can also name which of the book's nineteen plaintiff groups should take the case to federal court. The page offers free reading so people can judge the argument first: Chapter 1, a brief, the poster, Gord Magill's foreword, the open-book exam, the endnotes, one-page handouts, and letter-writing tools. Readers can also leave a public testimonial that may be shown to publishers and agents.

https://marti124.github.io/Patent_Exam

Three chapters in full, the Brief, an Invitation to Review, and the open-book examination materials — primary sources, prompts, and scoring sheet — so you can put the question to an AI model and judge the reasoning yourself, as eleven engines did, with all of them agreeing there is a constitutional conflict here. It includes the legal research system OpenCase.

https://marti124.github.io/Patent_EndNotes

The endnotes, glossary, and key-terms apparatus — over 253 letter-size pages, every citation with a live link. It includes Appendix A, the SCOTUS Case Master Table: more than 90 Supreme Court cases cited, sorted by decision year, each described for what it actually holds. Inclusion is not endorsement — the cases that cut against the argument are in there too, and say so.

https://marti124.github.io/Patent_Letters

Letter and packet generators for the Make American Living Affordable campaign, each aimed at a group with a concrete stake: sheriffs, governors and attorneys general, trucking and farm associations, health and lighting advocates, tribal leadership, public-domain scholars.

https://marti124.github.io/Patent_Exam/Handout_The_Forgotten_Half_of_the_Patent_Clause.pdf

A handout about the book.

The reception

More than 250 public testimonials on the research are collected at https://marti124.github.io/Patent_Exam/X_Testimonials.pdf, including Robert Malone, MD; Lee Smith; and Rachel Alexander, former Arizona Assistant Attorney General and legal journalist. Practicing and retired attorneys have read drafts and shaped chapters, among them a constitutional-law professor, a former federal energy regulatory attorney, and three IP lawyers.

I have published more than 113 long-form articles (just on X alone), forty of them on the Patent Clause and fifty-nine underlying the book's scope, drawing more than 8 million cumulative impressions, with more than 1.7 million of them patent-specific.

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To talk it over by phone, text first at 952-905-0822. Eastern time. Email is also the place to ask for the link or the book.